ANTI-DEFECTION LAW

Tenth Schedule | exact text -> adjudication -> democratic balance

1

CONSTITUTIONAL ORIGIN AND ARTICLE DECODER

- 1967 instability -> Committee on Defections -> 52nd Amendment Act, 1985.
- Tenth Schedule commenced 1 March 1985; it amended Arts 101, 102, 190 and 191.
- Art 102(2): Parliament member disqualified if disqualified under Tenth Schedule.
- Art 191(2): same constitutional bridge for a State House.
- Arts 101(3)(a)/190(3)(a): such disqualification leads to seat vacancy.
- Answer line: constitutional disqualification, not crime or lifetime political ban.

ANSWER GRABBER: Answer line: constitutional disqualification, not crime or lifetime political ban.

2

PARAGRAPH 1 DEFINITIONS

- House = either House of Parliament, Legislative Assembly, or either State House.
- Legislature party = all members of that House belonging to the political party.
- Original political party = party to which member belongs for para 2(1).
- Political party is organisational/electoral; legislature party is House-specific.
- Subhash Desai: legislative headcount alone cannot manufacture party authority.
- Trap: two-thirds legislature-party strength is not itself a new political party.

ANSWER GRABBER: Trap: two-thirds legislature-party strength is not itself a new political party.

3

PARAGRAPH 2 GROUNDS AND MEMBER TYPES

- Party member: voluntarily gives up membership OR violates para 2(1)(b).
- Whip chain: authorised direction -> contrary vote/abstention -> no prior permission -> no condonation by authorised party/person/authority within 15 days.
- Independent: joins any political party after election -> disqualified.
- Nominated: may join within 6 months of taking seat; joins later -> disqualified.
- Para 2(4): historical transition for members sitting at 1985 commencement.

ANSWER GRABBER: Para 2(4): historical transition for members sitting at 1985 commencement.

4

CONDUCT, EXPULSION AND EVIDENCE

- Ravi S. Naik (1994): voluntary giving up is wider than formal resignation;
- it may be inferred from proved conduct, context and chronology.
- G. Viswanathan (1996): expulsion does not turn member into an independent;
- deemed belonging to original party continues for Schedule purposes.
- Fair route: allegation -> disclosed material -> reply/evidence -> reasoned inference.
- Trap: criticism or dissent alone is not an automatic statutory formula.

ANSWER GRABBER: Trap: criticism or dissent alone is not an automatic statutory formula.

5

PARAGRAPH 3 DELETED; PARAGRAPH 4 MERGER

- 91st Amendment omitted the former one-third split defence from 1 January 2004.
- Para 4 requires original-political-party merger within its full textual design.
- Not less than two-thirds of legislature party must agree for merger deeming.
- Accepting members and non-accepting members opting for separate group are protected.
- Merger != post-election coalition; ECI symbol recognition alone is not the test.
- Trap: two-thirds is necessary within para 4, not a free-standing licence to defect.

ANSWER GRABBER: Trap: two-thirds is necessary within para 4, not a free-standing licence to defect.

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PARAGRAPHS 5, 6, 7 AND 8

- Para 5: narrow exemption for listed presiding officers leaving party for chair;
- no joining while in office; rejoining former party after ceasing office permitted.
- Para 6: Speaker/Chairman decides, if personally concerned, House elects member.
- Para 7 printed court-ouster text is invalid under Kihoto for want of ratification.
- Para 8: rules on records/reports/procedure, laid for 30 days before House;
- rules cannot enlarge grounds or remove notice, evidence, hearing and reasons.

ANSWER GRABBER: rules cannot enlarge grounds or remove notice, evidence, hearing and reasons.

7

KIHOTO AND JUDICIAL REVIEW

- Kihoto Hollohan (1992): core Schedule and para 6 substantially upheld.
- Speaker/Chairman deciding defection acts as a tribunal.
- Review survives under Arts 136, 226 and 227: constitutional violation, mala fides,
- natural-justice breach and perversity; it is not a routine merits appeal.
- Ordinarily review follows decision; grave irreversible interlocutory harm is exceptional.
- Basic-structure judicial review defeated para 7, not the whole 52nd Amendment.

ANSWER GRABBER: Basic-structure judicial review defeated para 7, not the whole 52nd Amendment.

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INACTION, RESIGNATION AND TIMING

- Rajendra Singh Rana (2007): unsupported split recognition and failure to decide
- pending disqualification could not defeat the Schedule.
- Shrimanth Balasaheb Patil (2019): resignation does not erase earlier defection;
- Speaker cannot add a term-long election ban absent constitutional authority.
- Keisham (2020): ordinarily decide within 3 months, exceptions supported by reasons;
- three months is judicial norm, not express Schedule text; tribunal is proposal.

ANSWER GRABBER: three months is judicial norm, not express Schedule text; tribunal is proposal.

9

NABAM REBIA AND SUBHASH DESAI

- Nabam Rebia (2016): Speaker facing valid removal notice disabled from adjudicating.
- Subhash Desai (2023): correctness referred for larger-bench reconsideration.
- No later official merits ruling located through 8 September 2026: state both facts.
- Subhash: political party appoints whip/leader; Speaker identifies party authorisation.
- ECI symbol and Speaker defection tracks may proceed independently.
- Governor cannot decide intra-party leadership; Court is not ordinary first instance.

ANSWER GRABBER: Governor cannot decide intra-party leadership; Court is not ordinary first instance.

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91ST-AMENDMENT REWARD CONTROLS

- Art 75(1A): Union Council of Ministers <= 15% of Lok Sabha.
- Art 164(1A): State Council <= 15% of Assembly, but at least 12 ministers.
- Arts 75(1B)/164(1B): para-2-disqualified party member barred from ministership.
- Art 361B: same period bars a remunerative political post.
- Period: disqualification -> old-term expiry OR earlier date declared re-elected.
- Trap: no permanent electoral ban and no bar ending merely at next session.

ANSWER GRABBER: Trap: no permanent electoral ban and no bar ending merely at next session.

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DEMOCRATIC BALANCE AND LEGAL FIREWALL

- Gain: mandate protection, stable ministry, reduced open office-driven crossing.
- Cost: broad whips, leadership centralisation, delayed Speaker orders, group engineering.
- Current law does not limit whips only to confidence or Money Bills.
- Merger != coalition | defection != symbol dispute | defection != bribery/privilege.
- Sita Soren (2024): bribery lacks legislative-privilege immunity; not a defection case.
- Reform: narrower whip + neutral/time-bound decider + clearer merger + party democracy.

ANSWER GRABBER: Reform: narrower whip + neutral/time-bound decider + clearer merger + party democracy.

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PYQ FILTER, ANSWER SPINE AND VERDICT

- 2022 Prelims Q16: nominated member may join within 6 months; no textual deadline.
- 2025 Prelims Q88: para 6 decider is Speaker/Chairman; 'political party' is in Constitution.
- 2023 GS-II supporting route: presiding-officer order, impartiality and good practice.
- Prelims: category -> conduct -> time -> defence -> decider -> review -> consequence.
- Mains: purpose -> text -> case -> incentive -> counter -> reform status -> verdict.
- Verdict: retain stability principle; narrow discipline, neutralise decision and ensure speed.

ANSWER GRABBER: Verdict: retain stability principle; narrow discipline, neutralise decision and ensure speed.